

Shreya Singhal v. Union of India (2015)

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Introduction

1. **Shreya Singhal v. Union of India** is an important case in Indian Constitutional Law.
2. The case was decided by the **Supreme Court of India in 2015**.
3. It mainly deals with **freedom of speech and expression on the internet**.
4. The case challenged **Section 66A of the Information Technology Act, 2000**.
5. The judgment is important because it protected the freedom of people to express their views online.

Facts of the Case

1. The case started after some people were arrested under **Section 66A of the Information Technology Act** for their comments made on social media.
2. Shreya Singhal, a law student, challenged the validity of Section 66A before the Supreme Court.
3. She argued that the section was unclear and could restrict the **freedom of speech and expression**.
4. The government defended the law by saying that it was needed to control offensive and harmful online messages.
5. The Supreme Court considered whether Section 66A violated the fundamental right given under **Article 19(1)(a)** of the Constitution.

Legal Issues

1. The main issue was whether Section 66A violated the **right to freedom of speech and expression**.
2. The court considered whether the words used in Section 66A were too vague and unclear.

3. Another issue was whether the section created an unreasonable restriction on online speech.
4. The court also examined whether Section 66A could be protected under the reasonable restrictions in **Article 19(2)**.
5. Finally, the court had to decide whether the provision should continue or be struck down.

Judgment

1. The Supreme Court gave its judgment in favour of **Shreya Singhal** and struck down Section 66A.
2. The court held that Section 66A was unconstitutional because it violated the fundamental right to freedom of speech and expression.
3. The court found that the words used in the provision were **vague and open to different interpretations**.
4. The court also held that the provision could have a **chilling effect** on people's freedom to express their views.
5. Therefore, Section 66A was declared **void in its entirety** and could no longer be used to punish people for online speech.

Legal Principle

1. **Freedom of speech and expression** is a fundamental right under Article 19(1)(a).
2. Restrictions on this freedom must fall within the reasonable restrictions allowed by **Article 19(2)**.
3. A law restricting speech cannot be vague or give excessive power to authorities.
4. The judgment recognised that freedom of speech also applies to communication through the **internet**.
5. The case became an important precedent for protecting online freedom of expression in India.

Business Relevance

1. The judgment is important for businesses that use **social media and online platforms** for communication.
2. Companies should understand that online communication is also connected with constitutional rights and legal rules.
3. The case encourages businesses to create a safe environment where lawful opinions can be expressed.
4. It also shows why clear and reasonable rules are important when dealing with online content.
5. The judgment has influenced how businesses, social-media platforms, and users understand freedom of expression online.

Conclusion

1. **Shreya Singhal v. Union of India** is a landmark case relating to freedom of speech on the internet.
2. The Supreme Court struck down Section 66A because it was unconstitutional and violated Article 19(1)(a).
3. The judgment protected people from unclear and unreasonable restrictions on online speech.
4. It confirmed that freedom of expression also applies to communication through digital platforms.
5. Even today, this case remains an important precedent in **Constitutional Law and Cyber Law**.